



Hiring employees who hold a Subclass 500 Student Visa (Condition 8104 or 8105)

Student visas come with strict work limits, and managing those limits at scale isn't easy. When you're rostering across multiple sites and shifting schedules week to week, it's hard to stay compliant without manual admin work slowing things down.



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International students make up a large part of the workforce in industries like hospitality, retail, health, and aged care. With over 700,000 student visa holders in Australia, most large employers have many on their teams.

With the right tools in place, you can confidently schedule student visa holders when they're available to work, expanding and contracting your workforce as needed without adding to headcount and without risking a compliance breach. That means more rosterable hours when you need them, and fewer manual checks.

Here's how to make it work.

Hiring Student Visa Holders (Condition 8105)



- Primary student visa holders can only work up to 48 hours per fortnight while their course is in session (a 14-day period starting on a Monday).
- They can work unlimited hours during official course breaks, or if their course is completed, cancelled, or deferred.
- Students in a master's by research or PhD can work unlimited hours at any time.
- They can not start work at all until their enrolled course has officially commenced.
- The 48-hour cap applies across all jobs, not just one employer.

At scale, these rules are hard to manage, especially with large, casual, or high-turnover workforces.

CheckWorkRights can make this more manageable by providing visa condition based rules to your time and attendance system via integration. This means student visa holders are only able to be rostered when they're eligible to work. CheckWorkRights pushes verified visa data directly from the Department of Home Affairs (DHA) into your systems in real time, so decisions are always based on current status.

You can also manage exceptions efficiently. Whether it's a study break, course completion, or postgraduate enrolment, student workers can submit evidence documents directly through CheckWorkRights. We track the evidence with an efficient workflow to review and approve then flag it on your CWR dashboard, so exemptions are clear and easy to apply. Employees are automatically sent requests and reminders, so there's no chasing paperwork or relying on spreadsheets.

By automating management of these conditions and exceptions, you can confidently schedule student workers when they're available, unlocking more rosterable hours without putting your

Hiring a Dependent Family Member of a Student Visa Holder (Condition 8104)

Dependent family members of student visa holders, known as secondary visa holders, also have specific work restrictions. In many cases, their work rights depend on the course their partner is studying.

Under Condition 8104:

- Most dependents can work up to 48 hours per fortnight, the same limit as primary student visa holders.
- Unlike primary students, they can't work full-time during study breaks.
- If their partner is enrolled in a master's by research or PhD, they can work unlimited hours.
- They can't start work until their partner's course has officially commenced.

To manage this properly, you need to confirm two things:

- **Their relationship** to the primary visa holder (evidenced by a visa grant letter, marriage or de facto certificate).
- The primary student's **course type and status** (evidenced by a Confirmation of Enrolment or other evidence of postgraduate study).

Doing this manually at scale is slow and error-prone.

CheckWorkRights helps you automate the entire process—collecting, verifying, and tracking the documents needed to determine work rights, and applying those rules across your workforce.

This gives you a consistent, scalable way to manage dependent visa holders, ensuring compliance.

Why Compliance Matters: Your Responsibility as an Employer

Student visa conditions aren't just something the visa holder has to follow. As an employer, it's your responsibility to ensure that anyone you hire has the legal right to work in Australia and that they're working within the limits of their visa.

If a student breaches their visa conditions while working for you, they could face visa cancellation. But your business could also face **penalties**, including:

- Financial penalties
- Reputational damage
- Potential loss of or bar to standard business sponsorship approval (sponsoring individuals under the employer sponsored migration—subclasses 482, and 186 etc.)

Staying Compliant: Practical Steps That Scale

Visa conditions can be complex, but managing them doesn't have to be. A few clear processes can make compliance easier:

- **Collect the right evidence upfront:** Ask for documents like the Confirmation of Enrolment and proof of any scheduled course breaks or postgraduate study.

- **Map rules into your workflows:** Set up visa-based rostering rules and automate exceptions, so student workers are only rostered when eligible, and can be rostered more when legally allowed to.
- **VEVO check regularly:** Don't rely on assumptions. Student Visas are often cancelled, and the employer is usually the last person to find out. Entitlements can change if a student switches courses, extends their visa, or moves into postgraduate study.

Student Visa Compliance Across the Employee Lifecycle

Managing student visa holders is an ongoing responsibility that spans the **entire employment lifecycle**. With purpose-built visa lifecycle management tools, CheckWorkRights goes beyond simple VEVO checks to give you end-to-end visibility and control with maximum efficiency. Here's how it works:

- **Recruitment and Onboarding:** Seamlessly verify work rights during recruitment and onboarding, with real-time VEVO checks that confirm a student's visa subclass, conditions, and expiry date.
- **Ongoing Monitoring:** Automatically track visa status changes, including renewals or new conditions, with continuous monitoring. This ensures you're always up to date, even if a student extends their visa or changes courses.
- **Rostering Integration:** CheckWorkRights integrates with your existing time and attendance or rostering software, helping you proactively manage the 48-hour per fortnight work limit.

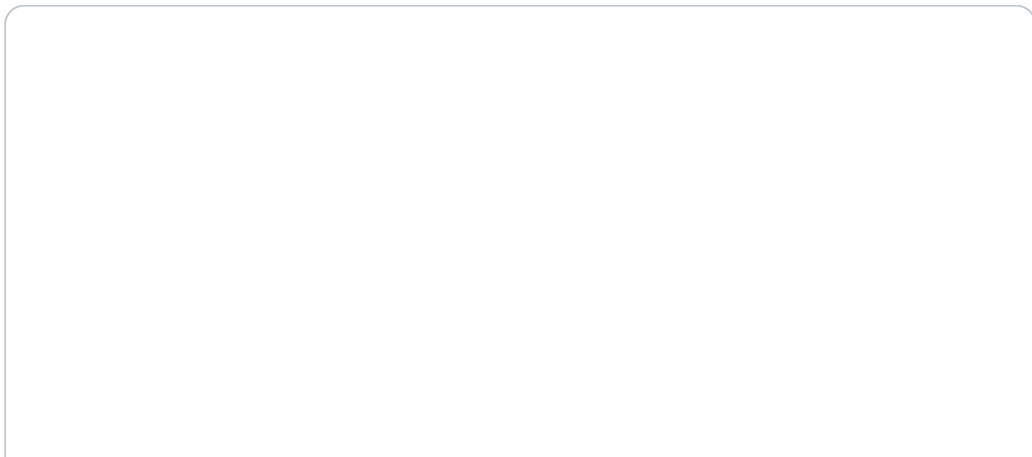
visa expiries and document renewals, so nothing slips through the cracks.

- **Audit Trail & Reporting:** Maintain a digital audit trail to demonstrate compliance if you're ever audited, and generate reports on visa holder status across your workforce with just a few clicks.

By automating these checks and providing easy to use workflows, CheckWorkRights reduces compliance risk and saves your team time, so you can focus on hiring great talent without the headache of manual tracking. Book a demo today.

Disclaimer: The information provided in this article is general only, and not to be taken as Migration Advice. Please be aware that visas and regulations are subject to frequent change. It is advisable to verify the latest information from the Department of Home Affairs (DHA) and or seek specific advice relating to your circumstances from a MARA Registered Migration Agent.

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